

C. Paragraph 22A Does Not Bar Recovery

Paragraph 22A of the Agreement does not bar Defendants' recovery of attorney's fees. That provision would have barred Plaintiffs from recovering fees had they prevailed, because they filed the complaint without first demanding mediation. However, Paragraph 22A imposes no bar upon Defendants, who were denied the contractual right to mediate prior to being forced to defend this lawsuit. The mediation prerequisite applies to the party who institutes litigation without compliance, not to the defending party who was subjected to suit without the benefit of the contractual dispute resolution mechanism.

D. The Requested Fees and Costs Are Reasonable

The Court finds that the reasonable market value of attorney services is the proper measure of a reasonable hourly rate. *Nemecek & Cole v. Horn* (2012) 208 Cal. App. 4th 641, 651. The record submitted by Defendants establishes that the hourly rates charged by Counsel are reasonable and consistent with market rates in the Bay Area. Counsel Robert Ward, a practitioner with 32 years of experience, bills at a rate below the 90th percentile for comparable firms in the region. Courts routinely apply market rates to fee awards based upon evidence of counsel's experience and comparable billing rates. *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal. App. 4th 691, 700; *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal. App. 4th 359, 395–397

The amount of work performed is likewise reasonable and well-documented. Mr. Ward expended less than 50 hours on this case over a six-month period, which is surprisingly low for litigation pending since March 2020. The work focused on preparing for and taking Plaintiff Milz's deposition and drafting the summary judgment motion, which relied upon admissions obtained during that deposition. Paralegal services were necessary and reasonable for deposition and summary judgment preparation. Courts may accept counsel's computation of hours reasonably spent. *Syers*, *supra*, 226 Cal. App. 4th at 700. The Court finds that the fee request reflects efficient defense of the action.

Defendants have paid or incurred \$54,367.50 in fees and \$2,627.57 in costs. Additional fees of \$3,325 for reply brief preparation and hearing attendance are properly included in the award. Based upon the foregoing, the Court hereby finds and orders as follows:

Ruling

1. Defendants' Motion for Attorneys' Fees and Costs is **granted**;
2. Plaintiffs shall pay Defendants attorney's fees in the amount of \$57,692.50 and costs in the amount of \$2,627.57, for a total award of \$60,320.07, no later than thirty (30) days from the date of entry of this order;
3. The Court will execute the proposed order lodged on June 25, 2026, and direct the Clerk of the Court to attach this ruling thereto; and
4. No appearance is required at the hearing scheduled for July 1, 2026.

15. 9:00 AM CASE NUMBER: N25-2020

CASE NAME: PETITION OF:ALAN KAPLAN

***HEARING ON MOTION IN RE: VACATE DISMISSAL, AND FOR ORDER REFORMING RELEASE OF MECHANIC'S LIEN**

FILED BY: KAPLAN, ALAN

TENTATIVE RULING:

Summary

1. Petitioner Allan Kaplan as Trustee of the Ehrhardt Trust II's ("Petitioner") Motion for Order Vacating Dismissal and Reforming Release of Mechanic's Lien is unopposed and is **granted**.
2. The Court will execute the proposed order lodged on March 16, 2026.
3. No appearance is required at the hearing on July 1, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-03128

CASE NAME: JAIME PEREZ VS. DOES 1 TO 50, INCLUSIVE

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE OF NONPARTY W/ DEPO
SUBPOENA**

FILED BY: AUTOZONE PARTS, INC.

TENTATIVE RULING:

The hearing on this Motion is **vacated**. All discovery motions are referred to a Discovery Referee. See Case Management Order No. 1. No appearance is required on July 1, 2026.

Courtroom Clerk's Session

Add On

17. 1:30 PM CASE NUMBER: N25-2304

CASE NAME: RAJ CHABRA VS. MOHAMMAD AMIRY

HEARING IN RE: CLAIM OF RIGHT TO POSSESSION

FILED BY:

TENTATIVE RULING:

Summary

Interested Party Abida Ataye ("Ataye") filed a Claim of Right to Possession and Notice of Hearing on June 18, 2026. The hearing for this Claim is scheduled for 1:30 p.m. on July 1, 2026.

The Court takes judicial notice of the Register of Actions and finds that Notice of Entry of Judgment, including a judgment of possession, has been entered on behalf of Plaintiffs Raj and Nina Chabra on January 20, 2026. The Clerk of the Court issued a Writ of Possession After Hearing on May 20, 2026. The Court is informed that the Sheriff's Office has executed the Writ of Possession.

This Court possesses insufficient information that evidences Ataye's interest in the subject premises located at 3503 Clayton Rd., Concord, CA 94519. Accordingly, Ataye's claim is **denied**.